

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND
EVERGREEN MARINE (SINGAPORE) PTE. LTD.

**COMPLAINANT'S MEMORANDUM IN RESPONSE
TO THE ADMINISTRATIVE LAW JUDGE'S DECEMBER 19, 2025
ORDER AND RESPONDENTS' DECEMBER 26, 2025 RESPONSE MEMORANDUM**

Complainant 20230930-DK-Butterfly-1, Inc. (“BBBY” or “Complainant”) hereby responds to the December 19, 2025 Order Setting Discovery Conference (the “Order”) and the memorandum filed by Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. (collectively, “Evergreen” or “Respondents”) (BBBY with Evergreen, the “Parties”), on December 26, 2025 (the “Response”).

The Order “encourage[s] Respondents to focus on explaining their requested relief and why they waited until four months after the corporate deposition to bring this dispute to my attention”. Order at 1. However, the Response does neither and instead provides cursory attention to the actual relief requested while falling totally silent on Respondents’ delay.

Adequacy of Kastin’s Testimony

As a brief preliminary matter, Complainant rejects Respondents’ claims that David Kastin was unable to adequately or competently answer questions in compliance with the Notices sent by Respondents requesting testimony, attached as Exhibits A and B to Respondents’ Letter dated November 25, 2025 (“Letter 19”), which Respondents sent to the Presiding Officer via email. Complainant’s response in full to that letter, served on December 12, 2025, was also included to the Presiding Officer via the same email, and addresses Mr. Kastin’s preparedness. Complainant maintains that Mr. Kastin served the key functions of a corporate representative to answer Respondents’ questions adequately and accurately based upon sufficient preparation.

Respondents’ Proposed Remedy

On November 25, 2025, Respondents originally proposed to Complainant an additional corporate designee as a remedy to the purported insufficiency of Kastin’s corporate designee testimony, (Letter 19 at 12), but have since shifted their request to bar Complainant from using

duly entered evidence in this case. Respondents now broadly request “restrictions on the evidence Complainant is permitted to submit in opposition to summary judgment motions and final briefing – precluding any evidence that attempts to supplement the deposition testimony of Complainant’s 46 C.F.R. 502.143(b)(6) witness.” Response at 1-2.

Respondents argue that Complainant should be “bound” by testimony provided by Mr. Kastin, including any instances where Mr. Kastin did not know the answer to any specific question posed to him. Response at 3. This requested relief is (1) impossibly vague to the extent it seeks to ***bar Complainant from presenting evidence already entered in this case in support of its claims*** regarding the subjects covered in Mr. Kastin’s 240-page corporate designee deposition, and (2) nonsensical in light of other produced evidence, such as fact witness deposition testimony, produced documents, and expert testimony. Evergreen’s Response provides ***zero specificity*** as to the exact categories of evidence that it seeks to bar, on what scale Complainant ought to be barred, or on what legal basis Respondents are entitled to such relief.

The issue of a corporate designee’s knowledge, or lack thereof, has been analyzed in depth by a number of courts. In *Snapp v. United Transportation Union*, the Ninth Circuit explained that “the entity is not allowed to defeat a motion for summary judgment based on an affidavit that conflicts with its Rule 30(b)(6) deposition or contains information that the Rule 30(b)(6) deponent professed not to know,” and found that “[t]his general proposition should not be overstated, however, because it applies only where the purportedly conflicting evidence truly, and without good reason or explanation, is in conflict, i.e., where it cannot be deemed as clarifying or simply providing full context for the Rule 30(b)(6) deposition.” 889 F.3d 1088, 1103 (9th Cir. 2018); *see also Keepers, Inc. v. City of Milford*, 807 F.3d 24, 34 (2d Cir. 2015) (“But Rule 30(b)(6) testimony is not ‘binding’ in the sense that it precludes the deponent from correcting, explaining, or

supplementing its statements.”) The court further stated that, “[n]othing in the text of the Rule or in the Advisory Committee notes indicates that the Rule is meant to bind a corporate party irrevocably to whatever its designee happens to recollect.” *Id.* Respondents’ proposed remedy is not an appropriate solution, and it has been brought in an untimely and inappropriate manner given the discovery and ongoing proceedings in this case.

None of the cases relied on by Respondents support their position. Respondents cite *Rainey v. American Forest and Paper Assoc., Inc.*, where the district court found that an *affidavit* by a former employee that made an “quantitative assertion contrasts sharply with the positions taken by [corporate designees]” and “work[ed] a substantial revision of defendant’s legal and factual positions” could not be submitted at the “eleventh hour.” 26 F.Supp.2d 82, 94 (D.D.C. 1998). This is irrelevant to the present proceeding. First, Respondents do not claim that Complainant has offered late evidence to substantially revise its positions. Complainant only seeks, in opposing the Response, to be able to rely on the documents and evidence cited in its *already-submitted* expert report, depositions taken in this case, and voluminous written discovery and documents produced by both parties. Second—even in light of Respondents’ vague requested relief barring evidence—Respondents cannot claim that Complainant is trying to provide assertions that *contrast with or contradict* positions taken by Mr. Kastin as the corporate designee if the answer was a simple “I don’t know”.

In addition, the *Fago v. M&T Mort. Corp.*, 235 F.R.D. 11, 24 (D.D.C. 2006) case is also unavailing. In that case, the court ordered that an alternate corporate designee be produced on issues where the designee lacked certain knowledge, because there was a *known candidate* who could speak to those issues based on other testimony from fact witnesses in that proceeding. There, the court simply recognized that prior testimony by those persons was not “binding” as a corporate

designee.¹ Similarly, in *Ierardi v. Lorillard*, the court stated that if the designee testifies that the corporation does not know the answers, that response cannot be changed. No. CIV. A. 90-7049, 1991 WL 158911, at *3 (E.D. Pa. Aug. 13, 1991).

The absurdity of Respondents' position becomes even more clear when looking at the questions Respondents highlighted in Letter 19 to argue that Mr. Kastin lacked sufficient knowledge. For example, Mr. Kastin responded "I do not know," to the question "What documents delivered in discovery relate to subject 1 in Exhibit 49?" Letter 19 at 9. Mr. Kastin is neither an index nor a search engine to have a list of document Bates numbers at the ready. Such questions are ill-suited for a corporate designee deposition. See *Arconic Inc. v. Universal Alloy Corp.*, No. 115CV01466ELRRGV, 2018 WL 4839225, at *6 (N.D. Ga. July 31, 2018), *aff'd*, No. 1:15-CV-01466-ELR, 2019 WL 12528945 (N.D. Ga. Mar. 4, 2019) (noting that movant did not support its contention that a party "is required by Rule 30(b)(6) to present a witness who has reviewed documents produced by the opposing party and identify which of those documents it contends support its case") especially here, in light of proffered expert reports and other discovery. "[D]isputes about compliance with Rule 30(b)(6) are seldom clear cut: 'More often, there is considerable room for disagreement about whether [Rule 30(b)(6)'s] requirements have been satisfied, and what remedy should be employed if they have not been satisfied.'" *Fuentes v. Classica Cruise Operator Ltd, Inc.*, 32 F.4th 1311, 1323 (11th Cir. 2022) (citation omitted) (noting that the occasional "I don't know" in a broad deposition is not itself problematic); *Chick-fil-A v. ExxonMobil Corp.*, No. 08-61422-CIV, 2009 WL 3763032, at *12 (S.D. Fla. Nov. 10, 2009) (citing

¹ Further, Respondents' purported quote from *Fraser Yachts Fla., Inc. v. Milne*, simply does not appear in that case. No. 05-21168-CIV-JORDAN, 2007 WL 1113251, at *2 (S.D.Fla. Apr. 13, 2007). The case acknowledges that a corporate designee *can* establish that the corporation itself lacks knowledge of a certain fact, but that is irrelevant here, where the issue at hand is Mr. Kastin's familiarity with the relevant topics. *Id.* When the court determined that the corporate designee's testimony was insufficient, it found that making the same designee available for testimony was an adequate remedy. *Id.* at *3.

Costa v. County of Burlington, 254 F.R.D. 187, 190 (D.N.J. 2008) (“Simply because defendant’s witness could not answer every question posed to him does not equate to the fact that defendant did not satisfy its obligation to prepare its 30(b)(6) witness.”)).

Respondents have failed to provide any case precedent where the court has provided their requested remedy to broadly bar a plaintiff from entering additional evidence in support of positions for which corporate designee did not have an answer. Especially when such answers in this case simply asked for a list of documents, which have otherwise been provided to Respondents as interrogatory responses, this remedy is not appropriate. The Response, despite the Order requesting Evergreen focus on the relief sought, does not provide a *single example* of which portions of Complainant’s corporate designee testimony it believes BBY should be barred from presenting **any** further evidence, and Respondents have thus wholly failed to support their requested relief.

Timeliness

As the Order notes, Respondents “waited until four months after the corporate deposition to bring this dispute”, even waiting until after the close of party depositions, to raise *any* concerns. Respondents’ delays regarding Mr. Kastin’s corporate designee testimony have been counter-productive to the ongoing discovery process between the Parties who have otherwise conferred on a number of additional discovery matters. As Respondents are aware, the Presiding Officer’s Initial Order requires the parties “(b) to resolve, to the fullest extent possible, disputes relating to discovery matters; and (c) to expedite, limit, or eliminate discovery by use of admissions, stipulations, and other techniques.” 46 C.F.R. § 502.141. The Response does not address Respondents’ delays or burden to attempt to resolve this matter in a timely fashion at all within fact discovery, which they have summarily failed to meet.

Dated: January 2, 2026

HUTH REYNOLDS LLP

Mohini Priya Banerjee Rarrick

Mohini P.B. Rarrick

(818) 235-9753

mpriya@huthreynolds.com

Karl C. Huth

(212) 731-9333

huth@huthreynolds.com

Matthew J. Reynolds

(646) 872-9353

reynolds@huthreynolds.com

Gregory A. Crapanzano II

(917) 575-3440

gcrapanzano@huthreynolds.com

41 Cannon Court

Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc.*

Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. by emailing a copy to their counsel of record listed below:

Ronald Betancourt
rbetancourt@bge-law.com
John Greco
jgreco@bge-law.com
Alton J. Evans
aevans@bge-law.com
Betancourt, Grego & Evans LLC
151 Bodman Place - Suite 200
Red Bank, New Jersey 07701
732-530-4646

Counsel for Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd.

Dated: January 2, 2026

Mohini Priya Banerjee Rarrick

Mohini P.B. Rarrick

*For Complainant 20230930-DK-Butterfly-1, Inc.
f/k/a Bed Bath & Beyond Inc.*